claims with no proof, seeks to make light of the login/password question by saying no rules have been framed on the digital side of Lok Sabha operations, and hence none have been violated. As the debate unfolds through the inevitable political rhetoric, the case might come to hinge on this interesting legalistic riddle.

There are already signs of that. While Dubey asserts that sharing login details violates the IT Act, several Opposition leaders point out that there are no rules yet that govern the Lok Sabha portal and none in the IT Act that prohibit the sharing of passwords. Danish Ali and Giridhari Yadav, both Opposition members of the ethics panel, told INDIA TODAY that the drafting and submission of questions is often done by MPs' aides and that even if someone else logs in, the MP concerned gets an OTP prompt on their mobile phone. Moitra, on her part, says she took help from friends and relatives to key in questions when she was travelling to countries such as the UK and Switzerland. And that this included the Hiranandani office, which she treats as secretarial help.

Not entirely convinced, the ethics panel on November 9 adopted its 500-page draft report recommending her expulsion for "unethical conduct" and "serious misdemeanours". It says Moitra's member page had been "operated 47 times" from the UAE between July 2019 and April 2023. It also has a note from the home ministry stating that the sharing of her credentials could have resulted in "leakage of sensitive or classified information". So the punitive arc has been set to maximum.

It did not help that this came barely a week after the drama at the panel hearing. It was on November 2 that Moitra's deposition before the panel ended abruptly when she stormed out, her strides matched by other Opposition members, over allegedly inappropriate questions posed by panel chairman Vinod Sonkar of the BJP. Moitra even wrote to Birla saying Sonkar had subjected her to a verbal "*vastraharan*" (disrobing) through questions regarding her travels, hotel stays and phone calls. Moreover, no proof was submitted on the bribe allegations. And as BSP's Danish Ali says, Hiranandani, who had turned approver, was not questioned on his affidavit supporting the allegations. A week later, when the panel finally adopted the draft report, six MPs voted in favour (five of the BJP and Preneet Kaur of the Congress, wife of former Punjab CM Captain Amarinder Singh, who is now with the BJP) and four from the Opposition (Danish Ali, Congress's V. Vaithilingam, CPI(M)'s P.R. Natarajan and JD(U)'s Giridhari Yadav) submitted a dissent note. Opposition members say the report was merely circulated on the evening of November 8 and put to vote directly the next day. "There was no discussion at all," says Danish Ali (see *What Ethics Committee Members Say*). Also, a member says no quid pro quo could be established between the questions asked in the Lok Sabha and the gifts Moitra purportedly received.



"IF YOU DO NOT HAVE ANYTHING AGAINST MAHUA AND IT'S THE SUBJECT OF INVESTIGATION, WHY HAS AN EXPULSION BEEN RECOMMENDED BY THE ETHICS COMMITTEE?"

ABHISHEK BANERJEE
TMC general secretary, on Nov. 9



"ALSO MR ADANI, DON'T WASTE YOUR TIME TELLING EVERYONE 'MAHUA'S TICKET WILL BE CUT'.... I WILL STAND FROM KRISHNANAGAR & DOUBLE MY MARGIN"

MAHUA MOITRA, *Lok Sabha MP (on Nov. 10 on X)*

On the question of bribes, the report says the ethics panel doesn't have the technical wherewithal to probe the money trail and recommends an investigation by the government "in a legal, institutional and time-bound manner". Moitra, never one to mince words, wrote defiantly on X: "Proud to go down in parliamentary history as the 1st person to be unethically expelled by the ethics committee whose mandate doesn't include expulsion...Kangaroo court, monkey business from start to finish."

Critics say the readiness with which the panel recommended Moitra's expulsion is plain vendetta politics. The BJP members of the panel, however, paint a different picture. Rajdeep Roy says Moitra herself gave a "monologue for two hours" and talked about her personal life, which the panel had no interest in, while Aparajita Sarangi claims Moitra was "arrogant in her demeanour". "She has been trying to create a fake narrative and misleading the people of the country by playing the victim card," she says.

The Ethics Committee is the only one of the Lok Sabha's 36 panels that probes citizens' complaints against MPs. It was a suo motu complaint by lawyer Jai Anant Dehadrai, who Moitra calls a "jilted ex", that set it off in this case. Such complaints have to be submitted through a lawmaker—Dubey did the honours—and referred by the Lok Sabha speaker or the Rajya Sabha chairman. If the panel recommends punitive action, a motion is brought in for a vote. If ultimately expelled, Moitra has the option of challenging the decision in court.

But there is also a possibility that Moitra may face criminal prosecution by the CBI under the Prevention of Corruption Act, 1988. While a Lok Sabha expulsion doesn't bar her from contesting polls again, a court conviction and a jail term of two years or more will foreclose the electoral route for six years. For now, that's only a distant worry. With her party throwing its full weight behind her, Moitra is all fired up for the 2024 polls and is hoping to win by over one lakh votes in the people's court. ■